

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Christopher Mills	Team: Team # 3	CCRB Case #: 201401452	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 02/12/2014 7:25 PM	Location of Incident: Park Place between Buffalo Avenue and Ralph Avenue		18 Mo. SOL 8/12/2015	Precinct: 77	
Date/Time CV Reported Thu, 02/13/2014 12:31 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 02/13/2014 12:31 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Rashan Lacoste	02285	935149	GANG BN
2. DT3 Jorge Tricoche	06542	935871	GANG BN

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Jorge Tricoche	Abuse: Det. Jorge Tricoche stopped § 87(2)(b) and § 87(2)(b)	A . Substantiated
B . DT3 Rashan Lacoste	Abuse: Det. Rashan Lacoste stopped § 87(2)(b) and § 87(2)(b)	B . Substantiated
C . DT3 Jorge Tricoche	Abuse: Det. Jorge Tricoche frisked § 87(2)(b)	C . Substantiated
D . DT3 Rashan Lacoste	Abuse: Det. Rashan Lacoste frisked § 87(2)(b)	D . Substantiated
E . DT3 Rashan Lacoste	Abuse: Det. Rashan Lacoste searched § 87(2)(b)	E . Substantiated

Case Summary

On February 13, 2014, § 87(2)(b) filed this complaint with the CCRB, via phone, on behalf of himself and § 87(2)(b).

On February 12, 2014, at approximately 7:25 p.m., Det. Jorge Tricoche and Det. Rashan Lacoste of Gang Squad Brooklyn North stopped § 87(2)(b) and § 87(2)(b) near the intersection of Buffalo Avenue and Park Place in Brooklyn. The following allegations resulted from this incident:

Allegation A – Abuse of Authority: Det. Jorge Tricoche stopped § 87(2)(b) and

§ 87(2)(b)

Allegation B – Abuse of Authority: Det. Rashan Lacoste stopped § 87(2)(b) and

§ 87(2)(b)

Allegation C – Abuse of Authority: Det. Jorge Tricoche frisked § 87(2)(b)

Allegation D – Abuse of Authority: Det. Rashan Lacoste frisked § 87(2)(b)

§ 87(2)(g)

Therefore, it is recommended that **Allegations A, B, C, and D** be closed as **substantiated**.

Allegation E – Abuse of Authority: Det. Rashan Lacoste searched § 87(2)(b)

§ 87(2)(g)

Therefore, it is recommended that **Allegation E** be closed as **substantiated**.

§ 87(2)(g)

Results of Investigation

Civilian Statements

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b), black man with black hair and brown eyes. He was § 87(2)(b) years old at the time of the incident.

CCRB Statement

§ 87(2)(b) provided an official statement at the CCRB on February 25, 2014. (Encl. 7a-7b) The following is a summary of his statement.

On February 12, 2014 at approximately 7:45 p.m., § 87(2)(b) was walking down Park Place with his friend § 87(2)(b). He had left a store approximately ten minutes beforehand. § 87(2)(b) spoke on his phone, and afterwards had a conversation with § 87(2)(b). They did not speak with anyone else or do anything with their hands as they walked.

§ 87(2)(b) was wearing a zipped up, red and black jacket, a black hat, and blue jeans. He wore the same jacket and jeans to his CCRB interview. § 87(2)(b) was wearing pants and a brown jacket with an attached hood.

While walking, § 87(2)(b) looked up and observed approximately one to two car lengths ahead of them was a black sedan with two men getting out. The men were in plainclothes, were not wearing any visible shields, and § 87(2)(b) did not recall them identifying themselves. However, he knew that they were police officers, because he had been stopped and frisked by one

of the officers, identified via investigation as Det. Rashan Lacoste, on a different occasion a long time ago. The other officer was identified via investigation as Det. Jorge Tricoche.

The detectives approached them without making any statements. There was a lot of traffic on the one way street, so cars were stuck behind the officers' vehicle. The area was well lit and there was only one other person on the sidewalk.

When the officers were approximately five feet away, § 87(2)(b) put his hands in the air in a surrender position. Det. Lacoste reached out with both hands and grabbed § 87(2)(b)'s jacket near the pockets, as though he was about to frisk him. § 87(2)(b) then stepped backwards and stated that he did not consent to any searches. Det. Lacoste responded "I do," and then reached underneath § 87(2)(b)'s jacket, running his fingers along the inside of his waistband near § 87(2)(b)'s belt buckle. § 87(2)(b) responded that the search was wrong and asked why Det. Lacoste was frisking him. Det. Lacoste then reached with his right hand into § 87(2)(b)'s left jacket pocket and pulled out § 87(2)(b)'s Wild Country deodorant stick, a photo of which is also in the case file. Det. Lacoste told § 87(2)(b) that he was being frisked because his deodorant stick looked like a gun. § 87(2)(b)'s deodorant stick is an approximately two to three inch tall, one inch in diameter, white plastic stick with a brown, rounded cap and a sticker that says "Wild Country" on it. § 87(2)(b) put the deodorant in his jacket pocket during his CCRB statement to show that it was not visible from inside his jacket pocket, and the CCRB investigator observed that it did not create a bulge because his jacket was already baggy.

Det. Lacoste returned the deodorant to the jacket pocket and asked § 87(2)(b) for his identification. § 87(2)(b) complied, and Det. Lacoste looked at it. § 87(2)(b) had been paying attention to Det. Lacoste, but at that point, turned his attention and observed that Det. Tricoche was finishing frisking § 87(2)(b). Det. Tricoche was patting down § 87(2)(b)'s legs from his ankles to his crotch, while § 87(2)(b) was saying something about the search being "bull." Det. Lacoste returned § 87(2)(b)'s identification, after which the officers returned to their vehicle.

§ 87(2)(b) then went to a nearby Chinese restaurant, where he wrote down the vehicle's license plate number and the time of the incident, which he provided in his initial complaint. § 87(2)(b) did not know for how long the incident lasted, but thought it was approximately five minutes.

Victim: § 87(2)(b)

§ 87(2)(b) provided a phone number for § 87(2)(b) but then apologized and stated that the number was incorrect. He then provided § 87(2)(b)'s email address instead. A search of the Lexis-Nexis database was conducted on February 26, 2014, but it returned over 5000 results for § 87(2)(b) and variations of his name in New York City. The search returned 147 results for § 87(2)(b) in Brooklyn alone. On February 26, 2014, and on March 20, 2014, emails were sent to § 87(2)(b) but no response was received. As of the date of this report, § 87(2)(b) has not filed any complaints with the CCRB.

On November 17, 2014, the investigator called the number § 87(2)(b) had said was a wrong number, but § 87(2)(b) answered and stated that he would call back a few minutes later. He did not call back, but when he was called again later that day, he provided a brief phone statement and scheduled an interview at the CCRB. § 87(2)(b) failed to appear at his scheduled appointment, and he did not call to reschedule his appointment.

A missed appointment letter was mailed to § 87(2)(b) on November 25, 2014, at the address § 87(2)(b) provided, which was also listed on § 87(2)(b)'s Stop, Question, and Frisk Report. He was called on November 25, 2014 and December 1, 2014, during which please call messages were left. As of the date of this report, § 87(2)(b) has not filed any other complaints with the CCRB and has still not called to reschedule. His Stop, Question, and Frisk Report did not contain any additional contact information.

During his phone statement, § 87(2)(b) had difficulty recalling the incident, but thought that the incident was a time officers stopped him while he was walking with § 87(2)(b) removed items from his pockets, and made him remove his shoes.

Attempts to Locate Video Footage

A search of GoogleMaps' Street View indicated that there were no security cameras at the intersection facing down Park Place in either direction.

NYPD Statements:

Subject Officer: DET. JORGE TRICOCHÉ

- *Det. Tricoche is a § 87(2)(b), Hispanic man with black hair and brown eyes. He was § 87(2)(b) at the time of the incident.*
- *Det. Tricoche worked from 4 p.m. on February 12, 2014, to 12:33 am. on February 13, 2014. He was in plainclothes with his partner, Det. Locoste.*

Handwritten and Electronic Stop, Question, and Frisk Reports for § 87(2)(b)

Det. Tricoche prepared a Stop, Question, and Frisk report for § 87(2)(b) identified via the investigation as § 87(2)(b) in which he wrote that at the corner of Buffalo Avenue and Park Place, at 19:15 on February 2, 2014, he stopped § 87(2)(b) on the street, on suspicion of robbery, because he had the lower half of his face covered with a mask. He listed no other reasons for the stop, though under "additional factors" he checked off "evasive, false, or inconsistent response to officers' questions" and "changing direction at the sight of an officer."

The report also indicates that Det. Tricoche frisked § 87(2)(b) because of his "furtive movements" and "refusal to provide with officer's directions leading to reasonable fear for safety." § 87(2)(b) was not searched, and no weapons or other contraband was found.

The observation period prior to the stop was one minute, and the stop lasted five minutes. (Encl. 16a-16b)

Electronic Stop, Question, and Frisk Report

In addition to the Stop, Question, and Frisk Report that Det. Tricoche prepared for § 87(2)(b) § 87(2)(b) Det. Tricoche prepared a Stop, Question, and Frisk report (for which only the electronic version could be located) for an unknown, 23 year old, black man, identified via investigation as § 87(2)(b) who was stopped and frisked at the same time, date, and location, and for the same reasons. The investigation requested the handwritten version of the report, but Det. Tricoche's command was unable to locate it. (Encl. 17a-17b)

Memo Book

At 7:15 p.m. two men were stopped at Buffalo and Park Place. The men were § 87(2)(b) and § 87(2)(b) "Nassus" and they were stopped regarding a robbery, for which Stop, Question, and Frisk reports were prepared. (Encl. 12a-12c)

CCRB Statement

Det. Tricoche was interviewed at the CCRB on September 4, 2014. (Encl. 13a-13b) The following is a summary of his statement:

Det. Tricoche and Det. Lacoste received a radio call, though he was not sure if it was point-to-point or citywide, regarding a violent robbery that had occurred in the vicinity of 7th Avenue and 7th Street, which was within the vicinity they were patrolling. Immediately after the call, they observed two individuals, identified via investigation as § 87(2)(b) and § 87(2)(b)

walking quickly across Park Place while looking over their shoulders. The radio call of the robbery had provided descriptions of the suspects, including their races and clothing descriptions. However, at the time of his interview, Det. Tricoche could not recall the details of the radio call regarding the suspect description. At the time of his interview, he believed that § 87(2)(b) and § 87(2)(b) had fit the descriptions provided in the radio call.

Det. Tricoche and Det. Lacoste drove around the block and down Park Place. They approached § 87(2)(b) and § 87(2)(b) after which Det. Lacoste told them to stop walking. § 87(2)(b) and § 87(2)(b) threw their hands in the air and backed up away from the officers, making statements such as “what the fuck?” and “fuck you.” The detectives requested identification and Det. Tricoche said to “keep your hands where I can see them,” but § 87(2)(b) and § 87(2)(b) continued to curse and flail their arms by putting them in the air, and also reached into their pockets one time. Det. Tricoche did not remember whether he saw any bulges or objects in any of their pockets.

For their safety, the detectives conducted a “quick frisk” of both § 87(2)(b) and § 87(2)(b) to ensure that they did not have weapons, and explained that they were stopping them because of a radio call regarding a robbery. § 87(2)(b) and § 87(2)(b) responded that they had not done it. Det. Tricoche had no recollection of a stick of deodorant and did not recall reaching into § 87(2)(b)'s pockets to remove it or anything else. Det. Tricoche frisked § 87(2)(b) by touching his pockets where § 87(2)(b) was previously sticking his hands. Neither detective ran a finger along either of the men's waistbands or reached into any pockets at any time. Det. Tricoche asked § 87(2)(b) and § 87(2)(b) where they were going and where they were coming from.

During the interaction, a crowd of approximately fifteen people gathered and watched quietly. Several cars were stopped behind the detectives' vehicle, and the cars were honking. The detectives then decided based on the interaction that § 87(2)(b) and § 87(2)(b) had not been involved in the robbery, but Det. Tricoche still wanted to have information for Stop, Question, and Frisk reports, so he requested identification again, which § 87(2)(b) and § 87(2)(b) provided. § 87(2)(b) and § 87(2)(b) requested that the detectives identify themselves, and both detectives verbally provided their ranks, shields, and command. The officers returned the identifications, got back in their vehicle, and left.

During his statement, Det. Tricoche was shown a photo of § 87(2)(b) taken at the CCRB, but did not recognize him and did not recall whether § 87(2)(b) had been wearing the same outfit at the time of the incident that he was wearing in the photo.

Det. Tricoche was shown the Stop, Question, and Frisk report he prepared, which indicates that § 87(2)(b) had the lower half of his face covered with a mask. Det. Tricoche stated that if he wrote the report then it must be true, but that he did not recall it. He stated that “furtive movements” referred to § 87(2)(b) going into his pockets, and “refusal to comply with directives” referred to § 87(2)(b) flailing his arms. “False or evasive responses” to questions referred to when § 87(2)(b) and § 87(2)(b) stated “fuck you” in response to the detectives' directives. “Changing direction at the sight of an officer” referred to § 87(2)(b) and § 87(2)(b) backing up away from the officers. Det. Tricoche did not recall how far they backed up.

Subject Officer: DET. RASHAN LACOSTE

- *Det. Lacoste is a § 87(2)(b), black man with black hair and brown eyes. Det. Lacoste was 33 years old at the time of the incident.*
- *Det. Lacoste worked from 4 p.m. on December 12, 2014, to 12:22 a.m. on December 13, 2014. He was assigned to patrol and was in plainclothes with his partner, Det. Tricoche. They were in an unmarked vehicle.*

Memo Book

At 7:15 p.m. two men were stopped at Buffalo Avenue and Park Place. The men were § 87(2)(b) and § 87(2)(b) and they were stopped regarding a robbery, for which Stop, Question, and Frisk reports were prepared. (Encl. 14a-14c)

CCRB Statement

Det. Lacoste was interviewed at the CCRB on October 8, 2014. (Encl. 15a-15b) The following is a summary of his statement, § 87(2)(g)

Det. Lacoste and Det. Tricoche were driving when they received a radio transmission regarding a robbery which had occurred one block away, that Det. Lacoste thought had been Ralph Avenue. The radio transmission did not include a description or other information at that time. As the detectives turned the corner from Buffalo Avenue onto Park Place, they saw two black men coming down Buffalo Avenue approximately twenty feet away, both men were wearing ski masks over the lower halves of their faces. The investigation identified the men as § 87(2)(b) and § 87(2)(b). Though the masks themselves were not uncommon, since people there tended to “bundle up all winter,” because of the radio call the detectives turned their vehicle around and drove towards the men.

Upon seeing the vehicle, the men began to walk in separate directions from each other. The detectives exited their vehicle and approached them. They decided to stop the men because of their proximity to a robbery, their movements upon sight of the detectives’ vehicle, and their ski masks, and not for any additional reasons.

The detectives asked the men to stop. Det. Tricoche approached one of the men and Det. Lacoste approached the other, though Det. Lacoste could not recall which man he approached. The men both asked why they were being stopped, and the detectives explained. Det. Lacoste did not remember what he said exactly in his explanation during the incident, but usually he explains what happened to cause the stop and turns up his radio so the suspect can hear.

The detectives frisked both men for weapons. Though Det. Lacoste knew that Det. Tricoche frisked one of the men at the same time as he did, Det. Lacoste was focused on the man he was frisking and did not see what Det. Tricoche did during the frisk. Det. Lacoste patted down the man’s “lungeable areas,” by which he meant the man’s pockets and waistband. However, he did not reach into the man’s pockets. He did not know if Det. Tricoche reached into the other man’s pockets. Det. Lacoste did not recall seeing a stick of deodorant, and thought that if he had stopped the men because of a stick of deodorant, he would have recorded it on the Stop, Question, and Frisk report.

One of the men was calm, but the other was “a little agitated,” and repeatedly asked why they were being stopped and said they shouldn’t have been stopped. The calm man told the agitated man “let them do what they want to do.” Det. Lacoste was shown a photo of § 87(2)(b) taken at the CCRB, and though he recognized § 87(2)(b) he did not recall whether he interacted with § 87(2)(b) or with § 87(2)(b). Det. Lacoste did not say anything about the men making furtive movements, cursing, or putting their hands in their pockets.

Det. Lacoste had his shield out when he approached § 87(2)(b) and § 87(2)(b) and he believed that Det. Tricoche’s shield was out as well. However, he did not recall if either detective was ever asked for a name or a shield number. After frisking the men, the detectives waited with them for more information to come over the radio regarding the robbery. After a few minutes, when no additional information came over the radio, Det. Lacoste asked the man he had frisked

for his identification, which the man provided. Det. Lacoste wrote down the man's information, after which the officers got back in their vehicle and drove away.

NYPD Documents

Event Summary

The investigation ran checks for events in both of the locations provided by the officers but was unable to locate any events involving robberies in the areas described by the officers. The event summary does not list any events involving robberies in the vicinity of the incident at or around 7:15 p.m. on February 12, 2014. (Encl. 18a-18d)

Online Booking and Arraignment Dispositions website

A search of the Online Booking and Arraignment Dispositions website does not list any arrests for robbery or related offenses in the vicinity of the incident or the locations provided by the officers at or around 7:15 p.m. on February 12, 2014, though some of the records were sealed. (Encl. 19a-19b)

Complaint Reports

No complaint reports were prepared regarding robberies within the confines of the 77th or 78th Precincts on the date of the incident. (Encl. 26P)

Status of Civil Proceedings

- No Notice of Claim has been filed with the City of New York regarding this incident. (Encl. 20a)

Civilians' CCRB Histories

§ 87(2)(b) has filed the following CCRB complaints (encl. 4):

§ 87(2)(b)

§ 87(2)(b)

Subject Officers' CCRB History

- Det. Tricoche and Det. Lacoste have each been members of the service for ten years and there are no substantiated CCRB allegations against them. (Encl. 2a-3)

Conclusion

Identification of Subject Officers

Det. Tricoche and Det. Lacoste acknowledged interacting with § 87(2)(b) and § 87(2)(b)

Investigative Findings and Recommendations

Allegation A – Abuse of Authority: Det. Jorge Tricoche stopped § 87(2)(b) and

§ 87(2)(b)

Allegation B – Abuse of Authority: Det. Rashan Lacoste stopped § 87(2)(b) and

§ 87(2)(b)

Allegation C – Abuse of Authority: Det. Jorge Tricoche frisked § 87(2)(b)

Allegation D – Abuse of Authority: Det. Rashan Lacoste frisked § 87(2)(b)

It is undisputed that Det. Tricoche and Det. Rashan stopped and frisked § 87(2)(b) and § 87(2)(b) § 87(2)(g) § 87(2)(b) alleged that he and § 87(2)(b) were walking down the street when the detectives got out of a vehicle, approached them, and frisked them. § 87(2)(b) stated that he put his hands up when the detectives approached, and took a step back when Det. Lacoste grabbed his jacket. He also stated that Det. Lacoste told him that he was being stopped and frisked because of a deodorant stick in his pocket.

Det. Tricoche and Det. Lacoste contended that they stopped and frisked § 87(2)(b) and § 87(2)(b) because they had just received a radio call regarding a robbery. Det. Tricoche stated that the robbery had occurred at 7th Avenue and 7th Street, and Det. Lacoste stated that it occurred approximately a block away from where they were located at Buffalo Avenue and Park Place. Det. Tricoche stated that the detectives received a description of the suspects' races and clothing, and not only did § 87(2)(b) and § 87(2)(b) fit the description, they were also walking quickly across Park Place, glancing over their shoulders. Det. Lacoste, however, stated that the detectives had not received descriptions over the radio beyond the robbery location. He stated that the reason for the stops and frisks was that § 87(2)(b) and § 87(2)(b) were wearing ski masks over the lower halves of their faces, and that they began walking in opposite directions when they saw the detectives' vehicle, which was unmarked. Neither officer recalled noticing § 87(2)(b)'s deodorant stick, and Det. Lacoste contended that he did not reach into any of § 87(2)(b)'s pockets. The investigation was unable to locate any criminal complaint reports, arrest reports, or radio calls for robberies in either of the locations the officers provided.

Det. Tricoche added that additional factors leading to the frisks were that § 87(2)(b) and § 87(2)(b) allegedly cursed at the detectives, saying "what the fuck" when told to stop, which Det. Tricoche considered to be "false or inconsistent responses" to questions; and that § 87(2)(b) and § 87(2)(b) refused to comply with his directives by "flailing" their arms by putting their hands up when told to keep their hands where he could see them and by putting their hands in their pockets. Det. Lacoste contended that one of the men was calm, while the other was "a little agitated," but they were cooperative.

The Stop, Question, and Frisk Reports prepared by Det. Tricoche indicated that the detectives stopped § 87(2)(b) and § 87(2)(b) on the street for suspicion of robbery because they were wearing masks. He did not list any other reasons for the stops, though under "additional factors" he had checked off "evasive, false, or inconsistent response to officers' questions" and "changing direction at the sight of an officer." The report also indicates that frisks were conducted because of "furtive movements" and "refusal to comply with officer's directions leading to reasonable fear for safety."

An officer may stop a person if the officer reasonably believes the person has committed, is committing, or is about to commit a crime. Innocuous behavior does not provide officers with reasonable suspicion. People v. DeBour 40 N.Y.2d 210 (1976) (Encl. 1a-1l) Where no more than a common law right to inquire exists, a frisk must be based upon a reasonable suspicion that the officers are in physical danger and that the defendant poses a threat to their safety. People v. Stevenson 273 A.D. 2d 826 (2000)

§ 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(g)

Therefore, it is recommended that **Allegations A, B, C, and D** be closed as **substantiated**.

Allegation E – Abuse of Authority: Det. Rashan Lacoste searched § 87(2)(b)

§ 87(2)(g) § 87(2)(b) alleged that Det. Lacoste reached into his left jacket pocket and removed a stick of deodorant, which Det. Lacoste allegedly stated was the reason for the stop. Det. Lacoste denied searching § 87(2)(b) and did not recall a stick of deodorant, and Det. Tricoche had no knowledge of Det. Lacoste searching § 87(2)(b) or removing deodorant.

§ 87(2)(g)

Further, neither detective has any references in their memo books regarding details of a description or location of a robbery, or any details other than the individuals being stopped “regarding a robbery.” § 87(2)(g)

the CCRB investigation found no 911 radio calls, complaint reports, or arrest reports indicating any robbery occurring on that date, § 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation E** be closed as **substantiated**.

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date